

TERMS AND CONDITIONS

1. General Commercial Terms

- **Rate Validity & Variations:** Quoted rates are strictly valid until [VALIDITY]. All rates are subject to market variations, fuel price fluctuations, and currency changes without prior notice.
- **Booking Notice:** All bookings are subject to the availability of carrier space and equipment. A minimum of a two-week advance booking is required to secure space allocations.
- **Accuracy of Details:** Clients must carefully review all details listed in the quotation. Any discrepancies or objections must be formally communicated and resolved before booking confirmation.
- **Quote Scope:** Quoted rates explicitly exclude any services, duties, taxes, or surcharges not specifically itemized within the formal quotation text.
- **Incidental & Unforeseen Costs:** Any incidental, unexpected, or unforeseen charges arising at either origin or destination (including but not limited to customs exams, waiting time, or extra handling) will be communicated transparently and billed additionally at actual cost.
- **Transit Time Estimates:** Provided transit times are purely indicative estimates and do not constitute a guarantee. The Company shall not be liable for delays arising from customs clearance, weather conditions, port congestion, airline schedules, or force majeure events. Exact transit times are confirmed only at the time of carrier departure.

2. Freight Charges, Measurement & Payment

- **Chargeable Weight Principle:** Freight charges shall be calculated based on the actual gross weight or volumetric (dimensional) weight, whichever is higher.
- **Right to Re-Weigh:** The Company reserves the right to re-weigh or re-measure shipments at any stage of transport. The physical dimensions and weights determined by the carrier or the Company shall be final and binding.
- **Payment & Settlement:** Settlement must be executed strictly in accordance with previously agreed-upon credit or payment terms.
- **Company Lien on Cargo:** The Company shall have a general and paramount lien on the goods and any associated documents for all sums due at any time from the Shipper or Consignee. The Company reserves the right to withhold delivery of cargo until all outstanding freight and storage invoices are settled in full.

3. Shipper Responsibilities, Packaging & Cargo Nature

- **Cargo Specifications:** Unless otherwise explicitly specified in writing, all rates are based on standard legal weight limits and Non-Hazardous / Non-Dangerous Goods (Non-DG).
- **Declaration & Compliance:** The shipper shall provide accurate shipment details, ensure proper labeling, declare the true value and nature of the goods, and comply with all applicable export and import regulations. The shipper shall be fully liable for any penalties, fines, or losses arising from misdeclaration or non-compliance.
- **Packaging & Seaworthiness:** The shipper is solely responsible for ensuring all cargo is packed to standard export, secure, and seaworthy specifications. The shipper must explicitly declare and properly mark any non-stackable, fragile, or Dangerous Goods (DG).
- **Repacking Liability:** The Company bears no liability for loss or damage arising from inadequate or improper packaging. Any repacking or palletization deemed necessary by the carrier or regulatory authorities for safe transit shall be undertaken at the shipper's sole expense.
- **Scope of Operations:** Cargo loading and unloading operations at either the shipper's or the consignee's physical premises are strictly outside the Company's operational scope and liability.

4. Liability, Claims Limitations & Force Majeure

- **Cargo Insurance:** Cargo insurance is excluded from standard rates. Insurance coverage can be arranged only upon explicit written request, subject to additional premium charges paid prior to departure.
- **Claims Notification Window:** All claims must be submitted to the Company in writing within three (3) days in the case of cargo damage, and within seven (7) days in the case of total loss or non-delivery. Claims submitted beyond these stipulated timeframes shall be deemed waived and legally void.
- **Evidentiary Support:** Each claim must be supported by authentic documentation, including but not limited to the original commercial invoice, detailed photographs of the damage, the packing list, and a joint inspection report.
- **Compensation Cap:** Compensation for proven loss or damage shall be based on the declared value of the goods and subject to applicable international conventions (e.g., Warsaw/Montreal for air, Hague-Visby for ocean). In the absence of a declared higher value and paid insurance premium, the maximum claimable amount is strictly limited to five (5) times the total freight charges paid for the specific affected shipment.
- **Force Majeure:** The Company shall not be liable for any delays, losses, damages, or failures to perform caused by events beyond its reasonable control, including but not limited to acts of God, war, civil unrest, international sanctions, natural disasters, pandemics, labor strikes, or government restrictions.

5. Storage, Demurrage & Cargo Abandonment

- **Free Time & Storage Limits:** Free storage at origin or destination is limited strictly to the period granted by the port, terminal, or carrier. Additional charges shall apply for warehouse storage, port demurrage, and container detention beyond the allowed free time.
- **Abandonment & Disposal Right:** If a shipment remains unclaimed, rejected, or unpaid for a period of thirty (30) days, the Company reserves the right, at its sole discretion and without prior notice, to dispose of, auction, or abandon the shipment. All proceeds will be used to recover outstanding operational costs, storage fees, and disposal expenses, with any shortfall remaining a debt due from the client.

6. Sea Freight Specific Terms

- **Incoterms Basis:** All ocean freight rates are quoted on an FOB (Free on Board) basis unless specified otherwise in writing.
- **Local Fees & Surcharges:** Rates are subject to local destination/origin charges. Customs duties, port charges, and shipping line terminal handling charges (THC) will be billed at actual cost. Standard Bill of Lading (B/L) exchange fees apply.
- **Exclusion of Emergency Risks:** Rates explicitly exclude War Risk Surcharges (WRS) and any emergency operational surcharges imposed arbitrarily by shipping lines.
- **Regional Crisis & Rerouting:** Due to ongoing geopolitical instability and regional maritime volatility, carriers reserve the right to reroute vessels (e.g., via the Cape of Good Hope). The client assumes liability for any resulting transit extensions or carrier-imposed premium surcharges.
- **Contingency Port Discharge:** In the event of a forced end-of-voyage or cargo discharge at an alternate contingency port due to safety or geopolitical risks, the consignee assumes full liability for all resulting secondary transport, storage, and handling costs.

7. Air Freight Specific Terms

- **Incoterms Basis:** All air freight rates are quoted strictly on an EXW (Ex-Works) basis unless specified otherwise in writing.
- **Export Documentation:** The shipper is solely responsible for procuring and executing all mandatory export compliance documentation, including the generation of the initial Certificate of Origin (COO).

8. Customs, Regulatory Compliance & Qatari Entry Mandates

- **Palletization Mandate:** In strict compliance with regulatory mandates at Hamad Port and regional Qatari customs entry points, all cargo must be properly palletized before presentation for clearance. Failure to comply will result in regulatory fines, manual destuffing fees, and clearance delays passed back entirely to the client.
- **Inspection Surcharges:** Rates are subject to any unexpected physical or radiographic (X-ray) Customs inspection charges, which will be billed additionally at actual cost.
- **Clearance Documentation:** The consignee is legally obligated to submit all authentic original documents required for customs clearance, including but not limited to: a Certificate of Origin (COO), and a Chamber of Commerce-attested Commercial Invoice and Packing List.
- **Import Licensing & Approvals:** The consignee must hold a valid, active import license registered in Qatar authorizing the import of the specific commodities involved. The arrangement and procurement of specialized ministry approvals (e.g., MoPH, MoECC), health certificates, or environmental permits rest entirely under the consignee's scope and responsibility.

9. Governing Law & Jurisdiction

- **Jurisdiction:** These Terms and Conditions, and any contract to which they apply, shall be governed by and construed in accordance with the laws of the State of Qatar. Any disputes arising directly or indirectly from services rendered shall be subject to the exclusive jurisdiction of the competent courts of Qatar.